

Court No. - 39

Case :- WRIT - C No. - 24196 of 2022

Petitioner :- M/S Kothiwal Institute Of Technology And Professional Studies

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Manoj Kumar Sharma

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Jyotsna Sharma, J.

The petitioner herein seeks to challenge the disconnection notice dated 21.06.2022 and the order dated 25.07.2022 whereby the petitioner has been called upon to deposit the arrears of electricity utilized by it in accordance with the audit report.

The contention is that the objection raised by the petitioner with regard to the demand of recovery has not been dealt with in the order impugned. It is then contended that by virtue of the provision contained in Section 56 of the Electricity Act, 2003 and Clause 6.15 of the Electricity Supply Code, 2005, the Electricity Department cannot recover the dues after a period of two years from the date when such sum became first due.

It is contended that though the petitioner was granted connection in the year, 2009 in HV-1 but the bills of the year 2009 were being sent in HV-2. On the audit objection, the difference between the HV-2 and HV-1 was sought to be recovered from the petitioner. The contention of the learned counsel for the petitioner is that there was no fault on the part of the petitioner as he has remained consistent in the payment of the bills.

Be that as it may, the dispute being raised by the petitioner herein is with regard to the computation of arrears, the appropriate remedy for the petitioner is to approach the Executive Engineer by invoking provisions of Clause 6.5(b) of the Electricity Supply Code, 2005. While raising his challenge the petitioner may prefer to Section 56 and Clause 6.5 to press his claim of revocation of the demand.

In case, the petitioner moves the Executive Engineer along with the copy of this order by filing an application within a period of two weeks from today, the Executive Engineer concerned shall be required to take an expeditious decision seeking

reports/comments from all concerned in accordance with law, preferably, within a period of four weeks, thereafter.

Till a decision is taken by the Executive Engineer, pursuant to the above direction, no coercive measure shall be taken against the petitioner.

The writ petition is **disposed of**.

Order Date :- 31.8.2022

Harshita